

File No: EXP202310840

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On May 23, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against 20 AÑOS DE MÚSICA A.I.E. (hereinafter, the respondent), through the Agreement that is transcribed below:

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File No: EXP202310840

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following
FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on June 23, 2023. The complaint is directed against 20 AÑOS DE MÚSICA A.I.E. with NIF V09865601. The reasons for the complaint are as follows:

The complainant states that, to attend concerts managed by the respondent entities accompanied by minors, it is required that authorizations be completed by the mothers, fathers, or guardians of the minors attending such events, for which a copy of the ID of the person granting the authorization is required, as well as personal information of both the authorizing person and the minors attending the event. It also points out that the authorization documents that collect the aforementioned data do not adequately inform about data protection, and there is no indication that they have a Data Protection Officer.

The complainant provides authorizations for participation in concerts in which data is collected.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to 20 AÑOS DE MÚSICA A.I.E. for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 03/08/2023, as evidenced by the acknowledgment of receipt in the file.

On 01/09/2023, this Agency received a response indicating:

- The event organized by AIE has its corresponding Privacy Policy. This Privacy Policy meets the requirements established in the GDPR and, in particular, those set forth in Article 13, and is available to interested parties at the time they register for the event, adequately informing them about the processing of their personal data on the Website.
- AIE does not grant access to its information to any third party that is not essential for fulfilling legal obligations and for the proper provision of the service, informing at all times about this in the aforementioned Privacy Policy.
- There was an error on the part of AIE in uploading the informative clause on the event's Website, which resulted in the publication of an outdated clause on that Website, with references to repealed regulations.
- It is necessary to carry out a proper identification of the person before authorizing access to the venue. This is necessary in order to verify their age to ensure that they can accompany the minors in their care. The only purpose for which this data is collected and stored is to comply with current regulations (specifically, Law 3/2017, of April 5, on Public Shows and Recreational Activities of Cantabria) and, if necessary, to demonstrate this to public authorities.
- AIE is not in one of the mandatory cases for the designation of a DPO.
- Regarding the measures adopted to prevent similar incidents in the future, AIE will proceed to carry out a manual and thorough review of the storage systems where the data is kept.

Informative clauses regarding data protection, in order to confirm that they are updated with the latest version.

- The deficiencies alleged by the interested party were caused by human error and are currently under review to prevent recurrence.

THIRD: On September 23, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: According to the report collected from the AXESOR tool, the entity 20 AÑOS DE MÚSICA A.I.E. is a microenterprise established in 2022.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In this case, there is evidence of the processing of personal data by 20 AÑOS DE MÚSICA A.I.E. in its business activity, as established in Article 4.2 of the GDPR:

"‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, alignment or combination, restriction, erasure or destruction;"

20 AÑOS DE MÚSICA A.I.E. carries out this activity in its capacity as the data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

"‘data controller’ or ‘controller’: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States."

III

Breach of Obligation

The known facts could constitute an infringement attributable to 20 AÑOS DE MÚSICA A.I.E., regulated in Article 5.1.c) of the GDPR and another infringement of Article 13 of the GDPR.

IV

Article 5.1 c) of the GDPR

Article 5 of the GDPR "Principles relating to processing" refers to the principle of data minimization in letter c) of its paragraph 1 in the following terms:

"Personal data shall be:

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

This article highlights that personal data shall be "adequate, relevant and limited to what is necessary" for the purpose for which they were collected, so that if the intended objective can be achieved without excessive data processing, that is how it should be done. In turn, Recital 39 of the GDPR indicates

that: "Personal data should only be processed if the purpose of the processing could not reasonably be fulfilled by other means." Therefore, only data that is "adequate, relevant and not excessive in relation to the purpose for which it is obtained or processed" shall be processed.

The categories of data selected for processing must be strictly necessary to achieve the declared objective, and the data controller must strictly limit the collection of data to that information which is directly related to the specific purpose being pursued.

In this case, the company requests that the "document for access by minors under 16 years of age" be completed by parents, guardians, or legal representatives in order to allow minors to enter concerts managed by it. In addition to this completed authorization, they require the presentation of a photocopy of the ID of the parent or guardian who authorizes, which will be retained by the company.

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In the written response to the transfer of the claim, the company states that the reason for requesting that the accompanying person of the minors provide a copy of their ID is that it is necessary to carry out a proper identification of the person before authorizing access to the premises, in compliance with current regulations.

Article 40 "Protection of Childhood and Adolescence" of Law 3/2017, of April 5, on Public Shows and Recreational Activities of Cantabria establishes, in its section 2:

2. The following limitations on access and stay in public establishments and portable or removable facilities where public shows and recreational activities are held, regarding minors under eighteen years of age, are established:

a) The entry and stay of minors is generally prohibited in nightclubs, discotheques, macro-discotheques, dance halls, pubs, bars, and similar establishments, with the following exceptions whose content will be developed by regulation:

1. That these establishments have authorization for sessions for minors, in which entry and stay of those over fourteen years and under eighteen will be allowed, in accordance with Article 24 of the Cantabria Law 5/1997, of October 6, on Prevention, Assistance, and Social Inclusion in matters of drug dependence.

2. That the activity to be carried out in nightclubs, dance halls, pubs, bars, and similar establishments is compatible with the moral and physical integrity of minors, as long as it lasts and provided they are accompanied by a responsible adult when they are under sixteen years old.

And, in its section 6:

6. The owners of public establishments or portable or removable facilities, as well as those who organize public shows or recreational activities, may require, directly or through their staff, the presentation of the national identity document or equivalent document as a means of verifying the age of the attending public. They must prevent access and, if necessary, evict, directly or through their staff, those who do not document their age or do not meet the age requirement as established in this law.

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it can be understood that the collection of a photocopy of the client's identity document with all the information contained in that document is a processing of personal data contrary to the principle of "data minimization," regulated in Article 5.1.c) of the GDPR.

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V

Classification and Qualification of the Infraction

If confirmed, the aforementioned infraction of Article 5.1.c) of the GDPR could imply the commission of the infractions classified in Article 83.5 of the GDPR, which under the heading "General Conditions for the Imposition of Administrative Fines" states:

"Infractions of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; In this regard, the LOPDGDD, in its Article 71, establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infractions."

For the purposes of the statute of limitations, Article 72 of the LOPDGDD indicates:

Article 72. Infractions considered very serious.

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Article 13 of the GDPR

Article 13 of the GDPR stipulates the following:

"1. When personal data relating to an individual is obtained from that individual, the data controller shall provide all the information indicated below at the time of obtaining such data:

- a) the identity and contact details of the controller and, where applicable, of their representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party;

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- e) the recipients or categories of recipients of the personal data, if applicable;
- f) if applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, a reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the location where they are made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;

e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to that further processing, information about that other purpose and any other relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

In this case, in the "document for access by minors under 16 years of age," regarding the basic information on data protection, it is outdated and refers to Organic Law 15/1999 of December 13, on the Protection of Personal Data.

This document does not refer to the processing that will be carried out on the data obtained through the copy of the ID card nor to the retention period of the same.

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Insufficient data from the company is provided to exercise the rights of the data subjects established in the GDPR, specifically, the right established in Article 17 "right to erasure."

In the response to the transfer of the complaint, 20 AÑOS DE MÚSICA A.I.E. states that it will carry out a manual and thorough review of the storage systems where the informative clauses regarding data protection are kept, in order to confirm that they are updated with the latest version and that the deficiencies alleged by the complainant were caused by human error.

Although this Agency positively values the adoption of new measures that result in greater compliance with the regulations regarding the processing of personal data and that may prevent, in the future, incidents like the one that is the subject of this procedure, the technical and organizational measures must be adopted with regard to each and every risk present in the processing of personal data, including the human factor.

For all these reasons, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that 20 AÑOS DE MÚSICA A.I.E. may have processed the personal data of the complainant without adhering to the stipulations of Article 13 of the GDPR, previously transcribed.

VII

Classification and qualification of the infringement of Article 13 of the GDPR

If confirmed, the aforementioned infringement of Article 13 of the GDPR could constitute the commission of the infringements classified in Article 83.5 of the GDPR which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the rights of data subjects under Articles 12 to 22;"

In this regard, the LOPDGDD, in its Article 71 establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 of the LOPDGDD indicates:

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“1. Based on the provisions of Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious violations and shall be subject to a three-year statute of limitations for substantial breaches of the articles mentioned therein, particularly the following:
h) The failure to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

VIII

Proposal for Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damages suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damages suffered by the affected parties;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The link between the infringer's activity and the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be

attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”

In this case, in light of the possible infringement of Articles 5.1 c) and 13 of the GDPR, the imposition of a fine, in addition to the adoption of measures, if applicable, would be appropriate. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

According to the indicated provisions, in accordance with the evidence currently available in the initiation of the sanctioning procedure and without prejudice to the outcome of the instruction of the procedure, for the purpose of determining the amount of the sanctions to be imposed in this case, it is considered appropriate to graduate the sanctions according to the following criteria established by the transcribed provisions:

In an initial assessment, the following graduation criteria are considered concurrent as aggravating factors:

- Art. 5.1.c)

Article 83.2.g) of the GDPR: The categories of personal data affected by the infringement. This is because the content included in the identity document is a particularly sensitive data, the processing of which may lead to...

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issues of identity theft or fraud, and contains data that is not necessary for the purpose for which it was processed, as mere on-site verification of age may suffice.

- Art. 13 GDPR:

Article 83.2.a) of the GDPR: Nature, severity, and duration of the infringement: In fulfilling its legal obligations, the party being claimed against must act with the diligence that the circumstances of the case require, and it cannot be understood that this diligence is present when the rights of those affected by the data processing to be carried out are not properly informed. In this regard, it is necessary to refer to the Judgment of the Court of Justice of the European Union, of December 5, 2023, in case C-807/21 (Deutsche Wohnen), which states:

“76 In this regard, it should also be specified, concerning the question of whether an infringement has been committed intentionally or negligently and, therefore, can be sanctioned with an administrative fine under Article 83 of the GDPR, that a data controller can be sanctioned for behavior falling within the scope of the GDPR when they could not ignore the infringing nature of their conduct, whether or not they were aware of infringing the provisions of the GDPR (see, by analogy, the judgments of June 18, 2013, Schenker & Co. and others, C 681/11, EU:C:2013:404, paragraph 37 and cited case law; of March 25, 2021, Lundbeck/Commission, C 591/16 P, EU:C:2021:243, paragraph 156, and of March 25, 2021, Arrow Group and Arrow Generics/Commission, C 601/16 P, EU:C:2021:244, paragraph 97).” Considering the factors outlined, the initial assessment of the fine for the infringement of Article 5.1.c) of the GDPR is €3,000 (three thousand euros) and for the infringement of Article 13 of the GDPR is €2,000 (two thousand euros), without prejudice to what results from the instruction of the procedure.

IX

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the controller the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time

frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In such a case, in the resolution that is adopted, the present authority may require the controller to, within one month:

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- Include in the "document for access to minors" updated information regarding data protection, removing the reference to Organic Law 15/1999 of December 13, on the Protection of Personal Data.
- Adjust their informative clause to comply with the data protection regulations.
- Remove from the documents for access to minors: "This document is invalid without a photocopy of the ID of the parent/guardian who signs it."

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against 20 AÑOS DE MÚSICA A.I.E., with NIF V09865601, for the alleged infringement of Articles 5.1.c) and 13 of the GDPR, both classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be: without prejudice to what results from the instruction.

- For the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of €3,000 (THREE THOUSAND EUROS);
- For the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of €2,000 (TWO THOUSAND EUROS).

The above totals an amount of €5,000 (FIVE THOUSAND EUROS).

FIFTH: NOTIFY this agreement to 20 AÑOS DE MÚSICA A.I.E., with NIF V09865601, granting a hearing period of ten working days for them to submit any allegations and present the evidence they deem appropriate. In their written response,

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Claims must provide their NIF and the file number that appears in the heading of this document.

If no claims are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for the submission of claims to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €4,000 (FOUR THOUSAND EUROS), resolving the

procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €4,000 (FOUR THOUSAND EUROS) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit claims regarding the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €3,000 (THREE THOUSAND EUROS).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (€4,000 or €3,000), you must make it effective by depositing it into account No. IBAN: ES00 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled.

You must also send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

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In compliance with Articles 14, 41, and 43 of the LPACAP, it is hereby noted that, henceforth, notifications sent to you will be carried out exclusively in electronic form, through the Single Authorized Electronic Address (dehu.redsara.es), and that, should you fail to access them, your rejection will be recorded in the file, considering the procedure to have been duly carried out. You are informed that you may identify an email address to this Agency to receive notice of the availability of notifications and that the lack of this notice will not prevent the notification from being deemed fully valid.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On June 4, 2024, the respondent has proceeded to pay the fine in the amount of 3,000 euros, utilizing the two reductions provided for in the previously transcribed Initiation Agreement, which implies acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: In the aforementioned Initiation Agreement transcribed above, it was indicated that if the infringement were confirmed, measures could be imposed on the responsible party to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to

ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...".

Having received a written communication from 20 AÑOS DE MÚSICA A.I.E. informing that it has adopted the necessary measures to prevent the reoccurrence of the events leading to the committed infringement, this Agency acknowledges receipt of the same, without this declaration implying any pronouncement on the regularity or legality of the measures adopted.

It is noted regarding the provisions of Article 5.2 of the GDPR, which establishes the principle of proactive responsibility when it states that "The controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it." This principle refers to the obligation that falls on the controller not only to design, implement, and observe the appropriate legal, technical, and organizational measures to ensure that data processing is in accordance with the regulations but also to remain actively vigilant throughout the entire lifecycle of the processing to ensure that such compliance is correct, being additionally capable of demonstrating it.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the infringer acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

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The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202310840, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to 20 AÑOS DE MÚSICA A.I.E.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1219-21112023

Mar España Martí

Director of the Spanish Agency for Data Protection

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